



Province of Alberta

SENIORS BENEFIT ACT

SENIORS BENEFIT ACT GENERAL REGULATION

Alberta Regulation 213/1994

With amendments up to and including Alberta Regulation 199/2025

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(Consolidated up to 199/2025)

ALBERTA REGULATION 213/94

Seniors Benefit Act

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Interpretation

1(1) In this Regulation,

- (a) “adult interdependent partner” means the adult interdependent partner of a senior who lives with or was living with the senior immediately before entering into a continuing care home;
- (a.1) “Alberta resident” means a person lawfully entitled to remain in Alberta who makes his or her home and is ordinarily present in Alberta, but does not include a tourist, transient or visitor to Alberta;
- (b) “child” includes a foster child and any other person in respect of whom a senior is known as the parent of the person in the community in which they live;

- (c) “dependant” means an unmarried child under the age of 21 years who is wholly dependent on the senior for support, an unmarried child less than 25 years of age who is in full time attendance at an accredited educational institute and an unmarried child 21 years of age or more but less than 65, who is wholly dependent on the senior by reason of mental or physical infirmity;
- (d) “lodge” means a facility that receives funding under the *Lodge Assistance Program Regulation* (AR 406/94).
- (e) “spouse” means the spouse of a senior who lives with or was living with the senior immediately before entering into a continuing care home.

(2) For the purposes of the Act,

- (a) “adult interdependent partner” means the adult interdependent partner of a senior
 - (i) who was living with the senior immediately before entering into a long-term care centre, with respect to individuals to whom section 5 or 7(1)(b) of the Schedule to the Act applies, or
 - (ii) who lives with or was living with the senior immediately before entering into a continuing care home, with respect to individuals to whom section 7(1)(a) of the Schedule to the Act applies;
- (a.1) “continuing care home” means a continuing care home as defined in the *Continuing Care Act*;
- (b) “designated assisted living unit” means the part of a continuing care home that was approved by the Minister as a designated assisted living unit where residents are admitted or discharged by a regional health authority on the basis of health needs before the coming into force of the *Continuing Care Act*;
- (c) “income for calculating benefits” means the total income less the following deductions: Old Age Security payments, Canada Pension Death benefits, Social Assistance payments, Federal Guaranteed Income Supplement, Federal Spouse’s Allowance, Registered Retirement Savings Plan contributions, the greater of employment income up to a maximum of \$3600 and other employment expenses allowed under the *Income Tax Act* (Canada) and registered pension plan contributions and carrying charges and interest expense up to the amount of the associated annuity income from a reverse mortgage;

- (d) “long-term care centre” means a nursing home under the *Nursing Homes Act*, RSA 2000 cN-7, or an auxiliary hospital under the *Hospitals Act*, RSA 2000 cH-12;
- (e) “senior” means a person who is 65 years of age or older;
- (f) “senior couple” means 2 individuals who are the spouses or adult interdependent partners of each other and at least one of whom is a senior;
- (g) “single senior” means a senior who does not have a spouse or adult interdependent partner;
- (h) “spouse” means the spouse of a senior who
 - (i) was living with the senior immediately before entering into a long-term care centre, with respect to individuals to whom section 5 or 7(1)(b) of the Schedule to the Act applies, or
 - (ii) lives with or was living with the senior immediately before entering into a continuing care home, with respect to individuals to whom section 7(1)(a) of the Schedule to the Act applies;
- (i) “total income” means,
 - (i) in respect of a single senior or each individual in a senior couple,
 - (A) the amount shown on line 15000 of the Notice of Assessment in respect of the income tax return filed under the *Income Tax Act* (Canada) by the single senior or individual in the senior couple, less
 - (I) the amount shown on line 12500 of the Notice of Assessment,
 - (II) the amount of any one-time payment received under the program referred to in section 275 of the *Budget Implementation Act, 2021, No. 1* (Canada) by the single senior or individual in the senior couple, and
 - (III) the amount of any lump sum payment received under the *Heroes’ Compensation Act* by the single senior or individual in the senior couple,

or

- (B) if a Notice of Assessment is not available, the amount that is determined by the Minister using the same income information that would have been used by the single senior or individual in the senior couple to report total income on line 15000 of an income tax return, less
 - (I) the amount that would have been used by the single senior or individual in the senior couple on line 12500 of an income tax return,
 - (II) the amount of any one-time payment received under the program referred to in section 275 of the *Budget Implementation Act, 2021, No. 1* (Canada) by the single senior or individual in the senior couple, and
 - (III) the amount of any lump sum payment under the *Heroes' Compensation Act* received by the single senior or individual in the senior couple,
- (ii) in respect of a senior couple, the sum of each individual's total income determined in accordance with subclause (i), and
- (iii) in respect of a senior couple where the 2 individuals have jointly elected to split pension income, the sum of
 - (A) the amount shown on line 15000 of the Notice of Assessment in respect of the income tax return filed under the *Income Tax Act* (Canada) by the individual who is receiving the pension, less
 - (I) the amounts shown on line 21000 and 12500 of the Notice of Assessment,
 - (II) the amount of any one-time payment received under the program referred to in section 275 of the *Budget Implementation Act, 2021, No. 1* (Canada) by the individual who is receiving the pension, and
 - (III) the amount of any lump sum payment received under the *Heroes' Compensation Act* by the individual who is receiving the pension,

and

- (B) the amount shown on line 15000 of the Notice of Assessment in respect of the income tax return filed under the *Income Tax Act* (Canada) by the other individual, less
 - (I) the amount shown on line 12500 of the Notice of Assessment,
 - (II) the amount of any one-time payment received under the program referred to in section 275 of the *Budget Implementation Act, 2021, No. 1* (Canada) by the other individual, and
 - (III) the amount of any lump sum payment received under the *Heroes' Compensation Act* by the other individual,

where the amount deducted on line 21000 of the Notice of Assessment of the individual who is receiving the pension and the amount claimed on line 11600 of the Notice of Assessment of the other individual are the same.

(3) For the purposes of subsection (2)(c), the income for calculating benefits for a senior couple is the total of the individuals' incomes for calculating benefits.

AR 213/94 s1;89/95;28/97;109/2003;209/2003;175/2004;
136/2005;65/2006;110/2008;184/2009;112/2013;
195/2013;224/2018;1/2022;22/2024;199/2025

Adjustment dates

1.1 For the purposes of the Act,

- (a) the accommodation adjustment date is July 1, and
- (b) the benefit adjustment date is July 1.
- (c) repealed AR 219/2024 s2.

AR 224/2018 s3;23/2024;219/2024

1.2 Repealed AR 219/2024 s3.

Application

2(1) In order to determine eligibility for a benefit an applicant for a benefit must submit a completed application in the form provided by the Minister and provide any additional information that the Minister requires with respect to the application.

(2) The applicant must advise the Minister as soon as possible of any change in the applicant's relationship status, residence, income for calculating benefits or Federal Old Age Security pension eligibility status.

(3) If the applicant has a spouse or adult interdependent partner, the spouse or adult interdependent partner must advise the Minister as soon as possible of any change in the spouse's or adult interdependent partner's residence, income for calculating benefits or Federal Old Age Security pension eligibility status.

AR 213/94 s2;28/97;109/2003

Eligibility for benefits

3(1) An individual is eligible for a benefit if the individual

- (a) is a senior,
- (b) is an Alberta resident and has been an Alberta resident for at least 3 months prior to applying for a benefit,
- (c) except where otherwise specified, meets the applicable provisions of the Act,
- (d) is a Canadian citizen or has been lawfully admitted to Canada for permanent residence,
- (d.1) is eligible, or has a spouse or adult interdependent partner who is eligible, for the Federal Old Age Security pension, and
- (e) has complied with section 2.

(1.1) Notwithstanding subsection (1), a senior is not eligible for any benefit during any period within which the Federal Old Age Security pension of that senior or that senior's spouse or adult interdependent partner is subject to a deferment under section 7.1 of the *Old Age Security Act* (Canada).

(2) Repealed AR 112/2013 s3.

(3) Notwithstanding subsection (1), an inmate of a correctional institution as defined in the *Corrections Act* or of a prison, as defined in the *Criminal Code* (Canada), is not eligible for a benefit.

(4) An individual is not eligible for the accommodation assistance component of the benefit if

- (a) the individual is not a homeowner and does not pay rent,
- (b) the individual provides services instead of paying rent for an accommodation shared by a relative or friend, or

- (c) the individual is a status Indian living on an Indian reserve.

(5) An individual is not eligible for the supplementary accommodation assistance component of the benefit if

- (a) the individual lives in accommodation other than a continuing care home,
- (b) the individual lives in a continuing care home and is wholly exempt from paying the applicable accommodation charge under section 9(3) of the *Continuing Care Act*, or
- (c) the individual lives in a continuing care home and
 - (i) is partially exempt from paying the applicable accommodation charge under section 9(3) of the *Continuing Care Act*, and
 - (ii) the monthly average of the previous year's total income, not including any supplementary accommodation assistance component of the benefit or Canada Pension Death benefit paid to the individual in that year, of the individual and, if applicable, the individual's spouse or adult interdependent partner, is equal to or greater than the sum of
 - (A) the portion of the accommodation charge the individual is required to pay, and
 - (B) the monthly disposable income amount calculated in accordance with section 7(2)(a) of the Schedule to the Act.

AR 213/94 s3;89/95;28/97;64/2000;109/2003;209/2003;
175/2004;65/2006;191/2007;112/2013;195/2013;
224/2018;22/2024

Benefit amount

4 The annual amount of a benefit under section 3 is the amount calculated in accordance with the Act.

AR 213/94 s4;89/95;224/2018

5 Repealed AR 89/95 s5.

Payments

6(1) A payment may be issued monthly.

(2) If a final benefit instalment or monthly benefit amount is less than \$10, a payment of \$10 shall be made.

(3) A benefit may be paid in any manner determined by the Minister.

(4) This section applies to a benefit under section 3.

AR 213/94 s6;89/95;28/97;64/2000;175/2004

Payments

7(1) A senior who is eligible to receive a benefit may be paid retroactively for a period of up to 11 months but not for any period prior to the month in which the senior's 65th birthday occurred or that coincides with a period of deferment referred to in section 3(1.1) on the part of the senior or the senior's spouse or adult interdependent partner.

(2) to (3.1) Repealed AR 89/2015 s2.

(4) A senior who is eligible to receive a benefit ceases to be eligible to receive a benefit in the month after the senior dies.

(5) A senior who leaves Alberta temporarily is not eligible to receive benefits 6 months after the senior has left Alberta.

(6) A senior who is eligible to receive a benefit ceases to be eligible to receive a benefit in the month after the senior leaves Alberta to permanently reside elsewhere.

(7) This section applies to a benefit under section 3.

AR 213/94 s7;89/95;28/97;64/2000;195/2013;89/2015

Payment to third party

8(1) The Minister may pay the beneficiary's benefit to a person who submits a completed application in a form satisfactory to the Minister and provides the Minister with a copy of a trusteeship document, power of attorney or other similar document satisfactory to the Minister.

(2) A person must notify the Minister as soon as possible if the person ceases to hold a power of attorney for the beneficiary or ceases to be the trustee of the beneficiary.

AR 213/94 s8;64/2000

Special needs component

8.1(1) An applicant is eligible for a discontinuous special needs component of a benefit if

- (a) the applicant meets the requirements of section 3(1)(a), (b), (d) and (e),
- (b) the applicant is not disqualified from receiving a benefit under section 3(1.1) or (3), and
- (c) the applicant's total income is less than the amount set out in section 9 of the schedule to the Act.

(2) The Minister may by order classify the discontinuous special needs component into primary and secondary funded items and may, in the order, designate

- (a) the categories of primary funded items and secondary funded items,
- (b) any additional or other eligibility criteria, factors and conditions that must be met in respect of each funded item,
- (c) the maximum number of each funded item that may be provided and the frequency with which each may be provided to any person either annually or in a lifetime, or both, and
- (d) the maximum amount that may be paid for each funded item and whether that amount is subject to adjustment under section 2.2(5) of the Act.

(3) An order made under subsection (2) is to be treated as a document incorporated by reference into this Regulation.

AR 89/95 s8;146/95;100/96;140/96;28/97;132/2002;136/2005;
131/2006;122/2007;110/2008;184/2009;87/2010;116/2011;
95/2012;112/2013;195/2013;89/2014;89/2015;74/2016;
95/2017;64/2018;224/2018

Necessities benefit

8.2 Notwithstanding section 10 of the Schedule to the Act or section 8.1 of this Regulation, the Minister may pay a benefit of up to a maximum of \$5000 in each year to an applicant who meets the requirements of section 3(1)(a) and (b), and who is unable to meet the necessities of life.

AR 140/96 s3;28/97;64/2000;89/2015;224/2018

Dental benefit

8.3(1) An applicant is eligible for a component of a benefit for eligible basic dental services as determined by the Minister if

- (a) the applicant meets the requirements of section 3(1)(a), (b), (d) and (e),

- (b) the applicant is not disqualified from receiving a benefit under section 3(1.1) or (3),
- (c) in the case of an applicant who is a single senior, the applicant's total income, after deducting the supplementary accommodation assistance benefit and Canada Pension Plan Death benefit paid to the applicant in the calendar year immediately preceding the benefit adjustment year, is less than, effective the benefit adjustment date of each benefit adjustment year, the sum of
 - (i) the single senior non-deductible income amount under section 8 of the Schedule to the Act for the benefit adjustment year,plus
 - (ii) an amount equal to the maximum annual amount, not including retroactive payments and not adjusted for deferral, of the monthly pension payable to a single senior under the *Old Age Security Act* (Canada) in the calendar year that ended before the commencement of the benefit adjustment year,adjusted annually, and
- (d) in the case of an applicant who is part of a senior couple, the senior couple's total income, after deducting the supplementary accommodation assistance benefit and Canada Pension Plan Death benefit paid to the senior couple in the calendar year immediately preceding the benefit adjustment year, is less than, effective the benefit adjustment date of each benefit adjustment year, double the sum of
 - (i) the single senior non-deductible income amount under section 8 of the Schedule to the Act for the benefit adjustment year,plus
 - (ii) an amount equal to the maximum annual amount, not including retroactive payments and not adjusted for deferral, of the monthly pension payable to a single senior under the *Old Age Security Act* (Canada) in the calendar year that ended before the commencement of the benefit adjustment year,adjusted annually.

(e) repealed AR 127/2024 s2.

(2) The maximum amount that an applicant is eligible to receive under this section is \$5000 in any 5-year period, regardless of the number of claims made in that period.

AR 87/2010 s3;195/2013;127/2024

Optical benefit

8.4(1) An applicant is eligible for a component of a benefit for prescription eyeglasses if

- (a) the applicant meets the requirements of section 3(1)(a), (b), (d) and (e),
- (b) the applicant is not disqualified from receiving a benefit under section 3(1.1) or (3),
- (c) in the case of an applicant who is a single senior, the applicant's total income, after deducting the supplementary accommodation assistance benefit and Canada Pension Plan Death benefit paid to the applicant in the calendar year immediately preceding the benefit adjustment year, is less than, effective the benefit adjustment date of each benefit adjustment year, the sum of
 - (i) the single senior non-deductible income amount under section 8 of the Schedule to the Act for the benefit adjustment year,

plus

- (ii) an amount equal to the maximum annual amount, not including retroactive payments and not adjusted for deferral, of the monthly pension payable to a single senior under the *Old Age Security Act* (Canada) in the calendar year that ended before the commencement of the benefit adjustment year,

adjusted annually, and

- (d) in the case of an applicant who is part of a senior couple, the senior couple's total income, after deducting the supplementary accommodation assistance benefit and Canada Pension Plan Death benefit paid to the senior couple in the calendar year immediately preceding the benefit adjustment year, is less than, effective the benefit adjustment date of each benefit adjustment year, double the sum of

- (i) the single senior non-deductible income amount under section 8 of the Schedule to the Act for the benefit adjustment year,

plus

- (ii) an amount equal to the maximum annual amount, not including retroactive payments and not adjusted for deferral, of the monthly pension payable to a single senior under the *Old Age Security Act* (Canada) in the calendar year that ended before the commencement of the benefit adjustment year,

adjusted annually.

(2) The maximum amount that an applicant is eligible to receive under this section is \$230 in any 3-year period, regardless of the number of claims made in that period.

AR 87/2010 s3;195/2013;127/2024

Appeals

9(1) A person may appeal the following in writing to the Minister in respect of a benefit or a component of a benefit under the Act:

- (a) a decision with respect to eligibility under section 3;
- (b) a decision with respect to the amount of a benefit under the Act.

(2) On receipt of an appeal, the Minister may refer it to an appeal panel of not more than 3 persons appointed by the Minister as a committee under section 7 of the *Government Organization Act*, and on receipt of the appeal panel's decision the Minister shall direct that the person

- (a) not receive a benefit,
- (b) receive a benefit,
- (c) receive a benefit in a greater or lesser amount, or
- (d) in the case of a benefit under section 3, receive retroactive benefits beyond a 11-month period, if in the opinion of the appeal panel it would be fair and reasonable and consistent with the Act and this Regulation.

(3) An appeal panel, when conducting an appeal under this section, must make its decision on whether an applicant is eligible for a benefit and the amount of the benefit, if any, in accordance with the Act and this Regulation.

- (4) An appeal panel's decision is final.

AR 213/94 s9;89/95;64/2000;87/2010;224/2018

Recovery of benefits

10(1) If a person has received a benefit under the Act for which the person was not eligible and if that person is or subsequently becomes a beneficiary, the amount of that money may be deducted from any benefit payable to that person under the Act in the manner, in the amounts and at the times determined by the Minister.

(2) If a senior couple receives separate benefit payments, any amounts to be deducted under this section shall be included in the benefit calculations and may be deducted in equal amounts from each person's payment.

AR 213/94 s10;28/97

Information sharing

11 The Minister shall provide to the Minister of Primary and Preventative Health Services information that is relevant for the purposes of the administration of the *Health Insurance Premiums Act* as it relates to the *Seniors Benefit Act* and this Regulation.

AR 213/94 s11;28/97;206/2001;170/2012;158/2025

12 Repealed AR 74/2016 s3.

Expiry

12.1 For the purpose of ensuring that this Regulation is reviewed for ongoing relevancy and necessity, with the option that it may be repassed in its present or an amended form following a review, this Regulation expires on July 1, 2030.

AR 132/2002 s3;122/2007;87/2010;89/2015;127/2024

14 Repealed AR 74/2016 s3.

Schedule Repealed AR 224/2018 s9.



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